



# Enforcement Rules of KOSPI Market Disclosure Regulation

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## **§1. Purpose**

The purpose of these Enforcement Rules is to stipulate matters necessary for the enforcement of the KOSPI Market Disclosure Regulation (hereinafter referred to as “the Regulation”). (Amended on February 3, 2009; December 21, 2009)

## **§2. Definitions**

(1) The terms used in these Enforcement Rules shall have the same meanings given to them in the Regulation and other relevant regulations of the Exchange.

(2) “Those who are stipulated in the Enforcement Rules” in the proviso to [§2(7)2] of the Regulation refers to an entity falling under any of the following subparagraphs: (Amended on December 10, 2020)

1. Entities under Subparagraphs 1 and 2 of Article 10(1) of the Enforcement Decree of the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Enforcement Decree of the Act);

2. Entities under Subparagraphs 1 through 10 and 13 through 16 of Article 10(2) of the Enforcement Decree of the Financial Investment Services and Capital Markets Act. Provided that, from among the entities under Subparagraph 8 of Article 10(2) of the Enforcement Decree of the Financial Investment Services and Capital Markets Act, the investment advisory business entities, discretionary investment business entities and trust business entities shall be excluded; and

3. Entities under Subparagraphs 3, 10, 11, 12 and 13 of Article 10(3) of the Enforcement Decree of the Financial Investment Services and Capital Markets Act.

(Wholly amended on February 3, 2009)

## **§3. Methods of Document Submission**

The documents specified in [§6(1)] of the Regulation shall, unless otherwise stipulated in the Regulation, be submitted to the Exchange by mail, facsimile or electronic document, or in person. (Amended on February 3, 2009; April 19, 2012; February 26, 2013)

## **§4. Disclosure Media**

The disclosure media under [§6(2)] of the Regulation shall be the means noted in any of

the following subparagraphs: (Amended on February 3, 2009; December 10, 2020)

1. Electronic disclosure system noted in [§64] of the Regulation;
2. Devices used mainly for handling and displaying the securities related information, which meet the requirements specified by the Korea Exchange (hereinafter referred to as “the Exchange”) such as the reliability, user convenience, etc. (hereinafter referred to as “financial information terminals”); and
3. The Daily Stock Market Review (available only in Korean on the Exchange’s website)

#### **§4-2. Corporations subject to Verification Procedure, etc.**

(1) “KOSPI-stock-listed corporations specified in the Enforcement Rules” in the proviso to [§6(2)] of the Regulation shall refer to the corporations falling under any of the following subparagraphs: (Amended on August 28, 2015; December 10, 2020)

1. A newly listed corporation;
2. A corporation designated as unfaithful disclosure corporation pursuant to [§35] of the Regulation;
3. A corporation designated as administrative issue pursuant to [§47] of the KOSPI Market Listing Regulation (hereinafter referred to as “the Listing Regulation”);
4. A corporation to which the causes for delisting specified in [§48] of the Listing Regulation have occurred;
5. From among KOSPI-stock-listed corporations, a corporation that has applied for publication of the matters to be reported after going through the prior verification procedure of the Exchange; and
6. The corporations specified in [§2(2), (14), (18) & (20)] of the Regulation and other corporations that the Exchange deems necessary for the protection of investors.

(2) The Exchange shall designate the KOSPI-stock-listed corporations that fall under any of the subparagraphs of paragraph (1) as the corporations subject to verification procedure, and the time of designation and release from the designation shall be as specified in [Annex 3]. (Amended on August 28, 2015)

(3) “Details of reports that are set forth in the Enforcement Rules” in the proviso to

[§6(2)] of the Regulation shall refer to any of the following subparagraphs: (Amended on August 28, 2015)

1. Matters to be disclosed concerning [§153] of the Listing Regulation and [§40] of the Regulation;
2. In cases where a corporation intends to clarify rumors or news, etc. pursuant to [§27] of the Regulation, the relevant matters to be disclosed; and
3. Other matters to be disclosed that the Exchange deems necessary for the protection of investors.

#### **§4-3. Non-facility Investment**

“Non-facility investment specified in the Enforcement Rules” in [§7(1)2(b)(i)] of the Regulation shall refer to the investments noted in any of the following subparagraphs: (Amended on February 26, 2013)

1. An investment for the production of films, records, entertainment, show performances, etc.
2. An investment for the production of games, programs, etc.
3. An investment for the production of educational materials, knowledge, information, publications, etc.; and
4. An investment through the contracts for entertainment and sports management.

[December 3, 2010]

#### **§4-4. Market Price-Dividends Ratio, etc.**

“Market price-dividends ratio specified in the Enforcement Rules” in [§7(1)2(e)(v)] of the Regulation shall refer to the percentage of dividend per share price (in the case of dividend in kind, it shall be the amount converted into cash) obtained by averaging the closing prices in the KOSPI market for one (1) week retroactive from the day before two (2) trading days (in cases where a decision on dividends is made before the dividend record date, it shall be the trading day immediately preceding the date of decision) from the dividend record date (if the day is a holiday, it shall be the immediately preceding trading day). (Amended on April 19, 2012; February 26, 2013; March 30, 2023)

#### **§4-5. Guidelines for Determining Material Information subject to Disclosure**

The guidelines referred to in [§7(3)] of the Regulation shall refer to any of the following subparagraphs:

1. Where an event or a decision concerning each of the following items falls under the criteria specified in the relevant item. Provided that this provision shall not apply to the matters relating to the ordinary management activities.

(a) For a matter on business operation, product activities, etc.: In cases where it is 5/100 (25/1,000 for large-sized corporations) or more of sales amount of the latest fiscal year;

(b) For a matter on the securities issued, claims and liabilities, losses and profits, closing of accounts, etc.: In cases where it is 5/100 (25/1,000 for large-sized corporations) or more of equity capital; and

(c) For a matter on the investment activities, etc.: In cases where it is 5/100 (25/1,000 for large-sized corporations) or more of equity capital or total assets as at the end of the latest fiscal year.

2. Where an event or a decision other than those noted in subparagraph 1 brings about or is expected to bring about a significant impact on the management (including corporate governance, restructuring, survival, delisting, lawsuits, etc.) or properties of the relevant KOSPI-stock-listed corporation, taking into consideration the size, current status, type of business and other characteristics of the relevant corporation.

[April, 28, 2016]

#### **§4-6. Material Business Matters of Subsidiary**

“Cases where the relevant holding company has submitted a written request in the manner stipulated in the Enforcement Rules” in [§8(3)] of the Regulation shall refer to the cases where the holding company has submitted a written request in accordance with [Annex: Form No. 7], with statements on the matters noted in each of the following subparagraphs: (Amended on February 26, 2013)

1. Name of the corporation submitting the request and the date of request;
2. Reasons for the request;
3. Changes in the subsidiaries (limited to stock-listed corporations) and
4. Other matters deemed necessary.

[September 1, 2010]

## **§5. Rumors and News**

“Rumors and news” in [§12(1)] of the Regulation shall be the corporate information of KOSPI-stock-listed corporations that is collected by the Exchange and the news published in the general daily newspapers or special economic daily newspapers prescribed in the Act on Promotion of Newspapers, etc., the circulation district of which is nationwide. (Amended on December 27, 2005; September 11, 2006; February 3, 2009; August 28, 2015)

## **§6. Request Time of Inquired Disclosure**

The time when the request for inquired disclosure is made pursuant to [§12(1)] of the Regulation shall be the time when the Exchange sends out the notification pursuant to [§7]. (Amended on February 3, 2009)

## **§7. Methods, etc. of requesting Inquired Disclosure**

The request for inquired disclosure under [§13(1)] of the Regulation shall be made by a means of telephone, facsimile or electronic document. In cases where the request for inquired disclosure was made by telephone, the details of the request shall be documented and the document shall be sent by a means of facsimile or electronic document without delay. (Amended on February 3, 2009; April 19, 2012)

## **§7-2. Disclosure of Reports on Corporate Governance**

(1) Pursuant to [§24-2(4)] of the Regulation, in the case where a KOSPI-stock-listed corporation files a report on corporate governance, it shall include a written statement on filing of the report on corporate governance under [Annex: Form No. 8]. (Amended on November 25, 2021; November 21, 2023; July 16, 2025)

(2) The Exchange may prescribe and present the detailed matters necessary for describing the report on corporate governance. In such cases, KOSPI-stock-listed corporations shall faithfully state the presented matters and report it. (Amended on December 10, 2020)

(3) In cases where a KOSPI-stock-listed corporation fails to follow paragraphs (1) and (2) in filing the report on corporate governance, the Exchange may deem that the filing has been made without stating the material matters referred to in [§24-2(2)] of the



Regulation.

(4) Other matters pertaining to the methods and procedures, etc. of the Exchange in connection with the disclosure of reports on corporate governance may be prescribed separately.

[January 2, 2019]

### **§7-3. Scope of News to be collected concerning Inquired Disclosure of Listed Foreign Corporations**

“Scope of news to be collected” in the proviso to [§25(2)] of the Regulation shall be the news noted in [§5] and the news items published by international news information providers or communication agencies. [September 11, 2006] (Amended on February 3, 2009)

### **§7-4. Basic Exchange Rates, etc. to be used by Listed Foreign Corporations**

(1) “Basic exchange rate, etc. set forth in the Enforcement Rules” in [§25(4)] of the Regulation shall refer to the basic exchange rate or arbitrated rate of exchange under the Foreign Exchange Transactions Act (hereinafter in this Article referred to as the “basic exchange rate, etc.”) of the day in Korea that corresponds to the day when the cause of reporting has occurred. Provided that, from among the details of the relevant matters to be reported, the financial details in the financial statement shall be applied with the exchange rate noted in each of the following subparagraphs: (Amended on November 11, 2011)

1. For the matters concerning financial details in the financial statement or consolidated financial statement: The basic exchange rate, etc. as of the end of fiscal year for which the relevant financial statement is prepared. Provided that, in cases where the equity capital has changed due to the increase or decrease in capital stock and capital surplus since the end of the latest fiscal year, the basic exchange rate, etc. as of the base date of the increase or decrease in capital stock and capital surplus, such as the payment date of capital increase and the base date for capital reduction.

2. For the matters concerning financial details in the income and loss statement, comprehensive income and loss statement, consolidated income and loss statement or consolidated comprehensive income and loss statement: Average of daily basic exchange rates of the fiscal year for which the relevant financial statement was prepared.

3. [Deleted on November 11, 2011]

(2) [Deleted on November 11, 2011]

[February 3, 2009]

#### **§7-5. Qualification of Disclosure Agent, etc.**

(1) “Qualification requirements set forth in the Enforcement Rules” in [§26(1)] of the Regulation shall refer to the requirements under each subparagraph of paragraph (2).

(2) “A person who meets the requirements set forth in the Enforcement Rules” in [§26(2)] of the Regulation shall refer to a person who meets each of the following requirements: (Amended on September 25, 2019)

1. To have an address or residence in Korea;
2. To be fluent both in Korean and the language of home country. Provided that this provision shall not apply to the case of appointing such person as an assistant;
3. To meet any of the following items:
  - (a) A person who has more than one (1) year of experience as a disclosure staff (including disclosure agents; the same hereinafter in this Paragraph) of a KOSPI-stock-listed corporation (including KOSDAQ-listed corporations; the same hereinafter in this Paragraph); and
  - (b) A person who has completed the training course for certification of disclosure professionals which is offered by the Exchange to enhance the expertise of disclosure staff. In such cases, details necessary for certification of disclosure professionals shall be set forth in [Annex 4].
4. As the disclosure staff of a KOSPI-stock-listed corporation, the total accumulated demerit points imposed for having been designated as an unfaithful disclosure corporation during the latest one (1) year shall not exceed fifteen (15).

[November 11, 2011]

#### **§7-6. Corporations subject to Clarification Disclosure and Reporting Deadline, etc.**

(1) Pursuant to [§27(3)] of the Regulation, the corporations subject to clarification disclosure shall refer to the KOSPI-stock-listed corporations, except for those corporations that are recognized by the Exchange for such reasons as investor

protection. (Amended on September 25, 2019)

(2) The rumors or news, etc. subject to clarification under [§27(3)] of the Regulation shall refer to any of the following subparagraphs. Provided that rumors or news falling under any of the subparagraphs of [§40(2)] of the Regulation may be excluded from the matters subject to clarification.

1. New articles published in the newspapers referred to in [§5];
2. Reports made by news agencies registered pursuant to Article 8 of Act on the Promotion of News Communications and those made by online newspapers registered pursuant to Article 9 of the Act on the Promotion of Newspapers, etc.; and
3. Reports made by international news information providers or communication agencies that are recognized by the Exchange.

(3) The deadline for reporting of clarification disclosure under [§27(3)] of the Regulation shall be the day when the rumors or news for clarification have occurred.

[August 28, 2015]

## **§8. Voluntary Disclosure**

“A matter that is stipulated in the Enforcement Rules” in [§28] of the Regulation shall refer to the matter falling under any of the followings: (Amended on September 11, 2006; February 3, 2009; December 3, 2010; June 16, 2011; November 11, 2011; April 19, 2012; February 26, 2013; March 26, 2013; July 11, 2013; August 28, 2015; April 28, 2016; July 28, 2016; March 9, 2017; January 2, 2019; September 25, 2019; July 29, 2020; December 10, 2020; November 25, 2021; November 21, 2023; May 23, 2024)

1. [Deleted on December 28, 2016]
2. An investment in natural resource development. In such cases, a progress report on the relevant natural resource development shall be filed within seven (7) days after the submission of semiannual and annual reports, and when the relevant natural resource development is halted, such fact shall be reported without delay;
- 2-2. Demonstration of economic feasibility of the volume of reserves and production in relation to the resource development under subparagraph 2. In such cases, an appraisal report issued by an institution noted in each of the following items and the statement on the appraisal institution shall be submitted:

- (a) Korea Resources Corporation;

(b) Korea Institute of Geoscience and Mineral Resources; and

(c) As an entity with more than five (5) years of experiences in appraising natural resource development projects, the entity that has the record of appraising the natural resource development activity of KOSPI-stock-listed corporations (including the KOSDAQ-listed corporations and the corporations listed on foreign exchanges).

3. [Deleted on December 28, 2016]

4. Decrease in short-term borrowings;

5. Profits resulting from transactions of derivatives products;

6. Gains resulting from debt relief;

7. The matters falling under any of the followings in relation to the information on green management:

(a) Being granted with the certification of conformity for green technology and green projects or accreditation of specialized green enterprises, and cancellation of such certification or accreditation, pursuant to Article 60 of the Framework Act on Carbon Neutrality and Green Growth for Coping with Climate Crisis (hereinafter referred to as “the Framework Act on Carbon Neutrality”);

(b) Matters concerning the controlled entities under Article 27 of the Framework Act on Carbon Neutrality;

(i) Being designated (including re-designation) as controlled entity or cancellation thereof; and

(ii) Matters concerning the quantity of greenhouse gases emitted that is required to report to the government pursuant to Article 27 of the same Act. In such cases, the reporting shall be made within seven (7) days after submitting the business report, etc.

(c) Being imposed of measures such as an order for improvements, a request for correction or supplementation, imposition of administrative fine, etc. issued under the Framework Act on Carbon Neutrality;

(d) Being designated as green enterprises or cancellation thereof pursuant to Articles 16-2 and 16-3 of the Environmental Technology and Industry Support Act; and

(e) Matters pertaining to the sustainable management reports (regardless of their titles, it includes other reports related to the green management information) and the acquisition or disposal of the greenhouse gas emission permits, which are deemed to be informed to the investors.

7-2. [Deleted on July 16, 2025]

8. Donation and receipt of donation;

9. The matters falling under any of followings in relation to the provision of the Mutual Savings Banks Act;

(a) Case of becoming an oligopolistic shareholder or change in the status thereof;

(b) The fact that the equity capital ratio set by the Bank for International Settlements (BIS) of the mutual savings bank in which the relevant corporation holds an oligopolistic shareholder position has been lowered; and

(c) The quarterly financial statements of the mutual savings bank in which the relevant corporation holds an oligopolistic shareholder position.

10. The fact that a lawsuit for nullification or revocation of the resolution at the general shareholders' meeting on the merger of a company, takeover or transfer of business, split-off or merger after split-off, or all-inclusive share swap or transfer was filed, or a court ruling or decision on such lawsuit was made;

11. When a decision to conduct the revaluation for each class of tangible assets was first made and when, as a result of the asset revaluation, it has been confirmed that there is an increase or reduction in the revaluation amount of assets;

11-2. When an offering of paid-in capital increase or equity-related bonds, or the outcome of the issuance has been finalized;

12. The fact that a financial holding company was requested to take measures for improvement of the management prescribed in the Financial Holding Companies Act;

13. The fact that a financial institution or its executive officer has become subject to a measure falling under any of the following items taken by a supervisory agency for the violation of the relevant statutes:

(a) The fact that the financial institution has become subject to a recommendation, demand or order for the management improvement, or measures such as conclusion of an agreement for management improvement, etc.; and

(b) The fact that an executive of the financial institution has become subject to the sanctions falling under any of the subparagraphs of [§18(1)] of the Regulations on Examination and Sanctions against Financial Institutions.

14. A change in the major shareholders or affiliated companies;

15. The matters falling under any of the followings in relation to the family-friendly management information:

(a) Obtaining the family-friendly certification under Article 15 of the Act on the Promotion of Creation of Family-friendly Social Environment (hereinafter referred to as the “Family-friendly Act”), extension of the term of validity of the certification pursuant to Article 17 of the same Act and revocation of the certification pursuant to Article 18 of the same Act; and

(b) Being imposed of the fine for negligence under Article 25 of the Family-friendly Act.

16. When the normal production activity of a factory resumes as the cause for the cease of production or shutdown of the factory is resolved.

17. The status of information security under Article 13(1) of the Act on the Promotion of Information Security Industry.

17-2. The fact on having been selected as an excellent work innovation enterprise in relation to the work innovation incentive system implemented by the Ministry of Employment and Labor pursuant to Subparagraph 7 of Article 35 of the Enforcement Decree of the Employment Insurance Act.

17-3. Whether or not the obligation on the gender composition of the board of directors under Article 165-20 of the Financial Investment Services and Capital Markets Act has been met.

18. Establishment of a corporate value enhancement plan.

19. When an improvement period is granted based on the results of the deliberation by the Corporate Review Committee or the Listing and Disclosure Committee of the KOSPI market in relation to the listing maintenance review, the main contents

of the improvement plan reviewed and confirmed by the relevant Committee.  
[March 28, 2025]

20. The matters about which the investors need to be informed, including the material business matters under [§7] through [§8-2] of the Regulation, the ratios of which are below the mandatory reporting ratios.

[December 27, 2005]

#### **§8-2. [Deleted on January 2, 2019]**

#### **§9. Matters applicable to Reversal of Inquired Disclosure in relation to Notable Change in Market Condition**

“Matters which are specified in the Enforcement Rules” in [§30(1)3] of the Regulation shall refer to the matters falling under any of subparagraphs 1(c), 2(a)(i) through 2(a)(iv), 2(a)(vi), 2(a)(viii), 2(b)(iii), 2(e)(iv), 2(e)(v) and 3(a)(iv) through 3(a)(vi) of [§7(1)]. (Amended on December 27, 2005; February 3, 2009, February 3, 2009; January 21, 2011)

(2) [Deleted on December 27, 2005]

#### **§10. Criteria and Procedures for the Review of Reversal of Disclosure**

(1) Pursuant to [§30(3)] of the Regulation, the criteria and procedures for the review carried out to make the decision on whether or not to designate a corporation as the unfaithful disclosure corporation due to a reversal of disclosure shall be as follows:

1. Review criteria: Cases of falling under any of the following items;
  - (a) Where, in view of the internal decision making procedures, it was possible to foresee and adjust in advance;
  - (b) Where the reversal of disclosure has been intentionally evaded; and
  - (c) In addition, where the Exchange deems it necessary to designate as an unfaithful disclosure corporation afterward due to the reversal of disclosure.
2. Review procedures, etc.
  - (a) Timing of review: Within ten (10) days from the date of occurrence of reasons for review

(b) Review procedures, etc.: When intending to start the review, the review schedule, etc. shall be notified to the relevant corporation without delay.

(2) When it is deemed necessary with regard to the review to decide whether or not to designate as an unfaithful disclosure corporation due to the reversal of disclosure under paragraph 1, the Exchange may request the relevant corporation to submit relevant materials or present an opinion statement.

[January 21, 2011]

### **§11. Exceptions in applying Provisions on Unfaithful Disclosure**

(1) “Cases that are minor matters and the Exchange deems them to have no or little influence on stock prices” in [§32(1)6] of the Regulation shall be the cases falling under any one of the following subparagraphs: (Amended on December 27, 2005; February 3, 2009; December 21, 2009; December 3, 2010; July 10, 2018)

1. In cases where, after having made a confirmed disclosure pursuant to [§7] through [§12], [§15] through [§17] or [§28] of the Regulation, the relevant corporation cancels or changes the details of such confirmed disclosure as it falls under any of [§7(1)3(b)(i) through (iv)] of the Regulation; and

2. In cases where it is deemed that the details of the noncompliance with disclosure obligations, reversal of disclosure or change of disclosure are deemed to be insignificant or such noncompliance is deemed to be unavoidable.

(2) The detailed criteria for applying provisions of paragraph (1) and [§32(1)] of the Regulation shall be established separately by the Exchange. [July 10, 2018]

### **§12. Filing of Official Objections and Handling thereof, etc.**

(1) When a KOSPI-stock-listed corporation files an official objection pursuant to [§34] of the Regulation, it shall submit an application stating the matters noted in each of the following subparagraphs and accompanying supporting documents, etc.: (Amended on December 27, 2005; February 3, 2009)

1. Name of applying corporation and date of application;

2. [Deleted on December 27, 2005]

3. Purpose and rationale of the application;



4. Statements on the progress made in fulfilling the disclosure obligations (in cases where the reasons for filing objection are related to [§39(2)] or [§88(5)] of the Regulation, the progress statement on such matters);

5. Indication of the existence of documentary evidences, if any; and

6. Other matters that are deemed necessary.

(2) When an application under paragraph (1) fails to meet the necessary requirements, the Exchange may request an amendment thereof. (Amended on December 27, 2005; February 3, 2009)

(3) Pursuant to the proviso to [§34(2)] of the Regulation, the Exchange may not go through the deliberation at the KOSPI Market Listing and Disclosure Committee noted in [§89] of the Regulation (hereinafter referred to as “Committee”) if a KOSPI-stock-listed corporation falls under any of the following subparagraphs: [June 20, 2017] (Amended on November 30, 2018; November 21, 2023; May 23, 2024)

1. Cases where all requirements in the following subparagraphs are met;

(a) The cause of the violation shall be ordinary negligence or minor negligence, or the severity of the cause of the violation shall be minor; (Amended on February 25, 2026)

(b) The demerit points shall be less than eight (8) points; (Amended on February 25, 2026)

(c) The relevant KOSPI-stock-listed corporation shall not be subject to the criteria for designation as an administrative issue or delisting under the Listing Regulations due to violation of disclosure obligations; and (Amended on February 25, 2026)

(d) There shall be no objection filed pursuant to [§34(1)] of the Regulation.

2. Case where a KOSPI-stock-listed corporation falls under any item of [§48(2)4] of the KOSPI Market Listing Regulation and the listing maintenance review is in progress accordingly; or

3. [Deleted on November 21, 2023]

### **§13. Deferral of Designation as an Unfaithful Disclosure Corporation and Criteria for Assessing Demerit Points, etc.**

(1) Pursuant to the proviso to [§35(1)] of the Regulation, in the case where a KOSPI-stock-listed corporation corresponds to any of the following subparagraphs in the last five (5) years and its violation of disclosure obligations is not deemed intentional or due to gross negligence, the Exchange may defer the designation of the relevant corporation as an unfaithful disclosure corporation under the condition that the relevant corporation would not receive a prior notice on the designation as an unfaithful disclosure corporation within six (6) months. In such cases, the deferral of designation as an unfaithful disclosure corporation shall be limited to one (1) time per case. [August 28, 2015] (Amended on November 30, 2018; November 21, 2023; March 28, 2025)

1. An outstanding disclosure corporation [referring to the KOSPI-stock-listed-corporation that has been awarded with a commendation and monetary rewards according to [§90] of the Regulation and the standards separately set by the Exchange (if an officer or employee of the corporation has been awarded with a commendation and monetary rewards, it refers to the KOSPI-stock-listed-corporation to which the relevant officer or employee belongs); the same hereinafter]; and [March 28, 2025]

2. An Corporate Value-up Best Practice companies selected according to the Selection Criteria for Value-up Best Practice Companies. [March 28, 2025]

(2) The demerit points imposed on unfaithful disclosure corporations pursuant to [§35(2)] of the Regulation shall be in accordance with the “Guidelines for Deliberation of Disciplinary Actions against Unfaithful Disclosure” under [Annex 2]. (Amended on February 26, 2013)

(3) [Deleted on December 27, 2005]

(4) [Deleted on November 21, 2023]

(5) In the case of adding or reducing the demerit points pursuant to [§35(3)] of the Regulation, it may be implemented in accordance with each of the following criteria after the deliberation of the Committee. Provided that, in cases falling under [§29(2)] (limited to cases where false disclosure has been made; the same hereinafter in the proviso to [§13-3(2)1] and the former part of [§13-3(3)]) and [§29(2-2)] of the Regulation, demerit points shall not be reduced: (Amended on February 3, 2009; June 23, 2010; May 21, 2012; February 26, 2013; October 20, 2025)

1. Seriousness of the matters such as the motivation and circumstance of noncompliance with disclosure obligations: To add or reduce the points in

accordance with the “Guidelines for Deliberation of Disciplinary Actions against Unfaithful Disclosure Corporations” in Annex 2; and

(a)[Deleted on May 21, 2012]

(b)[Deleted on May 21, 2012]

2. A corporation against which the designation as unfaithful disclosure corporation was deferred pursuant to paragraph (1): The imposition of demerit points may be deferred after six (6) months, but in the event that the relevant corporation is issued with a prior notice on the designation as unfaithful disclosure corporation during the relevant grace period, the deferred demerit points may be added to the demerit points at the time of imposition.

### **§13-2. [Deleted on February 3, 2009]**

### **§13-3. Guidelines for Imposition of Fine for Noncompliance with Disclosure Obligations, etc.**

(1) Pursuant to [§35-2(2)] of the Regulation, the Exchange shall impose a fine for the violation of disclosure obligation (hereinafter referred to as “fine”) in any of the following cases:

1. Additional imposition: For a case where the demerit point imposed pursuant to [§35(2) and (3)] of the Regulation (hereinafter referred to as “imposed demerit point”) is five (5) or more and it is necessary to impose additional fine in addition to the demerit point to prevent recurrence of disclosure violations; and

2. Alternative imposition: For a case where all of the following requirements are met and it is recognized that there is no risk of recurrence of disclosure violations even if some or all of the demerit points are replaced with a fine:

(a) The imposed demerit point shall be less than five (5);

(b) There shall be an application for the alternative imposition of fine by the relevant corporation within the official objection period pursuant to [§34(1)] of the Regulation;

(c) There shall be no designation as an unfaithful disclosure corporation within the last one (1) year; and

(d) There shall be no significant impact on public interests and investor protection due to any intentional, grossly negligent, or habitual violation of the disclosure obligations.

(2) The amount of fine shall be calculated according to the following subparagraphs depending on the type of fine imposed:

1. Additional imposition under paragraph (1)1: The amount calculated by multiplying the imposed demerit points by KRW 10 million. Provided that in cases where ten (10) or more demerit points are imposed and the disclosure obligations are violated intentionally, gross negligently, or habitually, causing a significant impact on public interest and investor protection or falling under [§29(2) or (2-2)] of the Regulation, it shall be the amount calculated by multiplying the imposed demerit points by KRW 20 million; and (Amended on October 20, 2025)

2. Alternative imposition under paragraph (1)2: The amount calculated by multiplying the demerit points to be replaced by a fine by KRW 4 million.

(3) The Exchange may increase or reduce (excluding cases where fines are imposed in accordance with [§29(2) or (2-2)] of the Regulation) the amount of fine determined pursuant to paragraph (2) by going through the deliberation of the Committee. In such cases, the amount of the increase or reduce shall not exceed 50/100 of the relevant imposed amount. (Amended on October 20, 2025)

(4) In the case where the Exchange imposes a fine on an unfaithful disclosure corporation, it shall send the relevant corporation a notice on imposition of the fine for noncompliance with disclosure obligations in [Annex: Form No. 5] (hereinafter referred to as “fine imposition notice” in this article).

(5) If an unfaithful disclosure corporation that has received a fine imposition notice pursuant to paragraph (4) fails to pay the fine within one (1) month from the date of receipt of the notice, the Exchange shall ask to make payment within fifteen (15) days, and if the payment is not made with that period, the Exchange shall impose to the relevant corporation (excluding delisted corporations) demerit points calculated according to the following subparagraphs depending on the type of fine imposed in lieu of the fine.

1. Additional imposition under paragraph (1)1: The demerit points calculated by dividing the unpaid fine by KRW 10 million (KRW 20 million in the case falling under the proviso to paragraph (2)1) and multiplying the value by 120/100 (the second decimal place is rounded down. The same shall apply hereinafter in paragraph 2); and

2. Alternative imposition under paragraph (1)2: The demerit points calculated by dividing the unpaid fine by KRW 4 million and multiplying the value by 120/100.

(6) Other matters relating to the use and management of the fine shall be determined by the Exchange.

[Wholly amended on May 23, 2024]

#### **§14. Publication of Fact on Designation as Unfaithful Disclosure Corporation, etc. and Demerit Points**

(1) When making a public announcement on the fact that a KOSPI-stock-listed corporation was designated as unfaithful disclosure corporation pursuant to [§36] of the Regulation, the Exchange shall post such fact and the process thereof, etc. in the Daily Stock Market Review for five (5) consecutive times from the date of the designation of unfaithful disclosure corporation under [§35] of the Regulation. (Amended on December 27, 2005; February 3, 2009)

(2) When making a public announcement on the fact that a KOSPI-stock-listed corporation was designated as unfaithful disclosure corporation pursuant to paragraph (1), the Exchange shall mark the word "不"(meaning "*unfaithful*") or "불성실공시법인"(meaning "*unfaithful disclosure corporation*") in the price information table of the Daily Stock Market Review (*available only in Korean language on the website of the Exchange*) or the financial information terminals, etc. for a period specified in each of the following subparagraphs, including the date when such fact is first publicly announced. Provided that, if the entire demerit points are replaced with a fine, it may not be indicated on the price information table of the Daily Stock Market Review or the financial information terminals. (Amended on February 3, 2009; June 23, 2010; August 28, 2015; December 28, 2016; December 27, 2019; December 10, 2020)

1. Where the demerit point imposed is less than five (5): For one (1) week.

2. Where the demerit point imposed is five (5) or more, but less than ten (10): For two (2) weeks.

3. Where the demerit point imposed is ten (10) or more: For one (1) month.

(3) In cases where a KOSPI-stock-listed corporation has been imposed the demerit points pursuant to [§35], [§38(2)], [§39] or [§88] of the Regulation, the Exchange shall post the name of the relevant corporation, the reasons therefor and the demerit points, etc. on the electronic disclosure system noted in [§4(1)] for one (1) year. (Amended December 27, 2005; September 23, 2008; February 3, 2009; August 28, 2015;

December 28, 2016; December 27, 2019)

(4) In cases where the Exchange defers the designation of unfaithful disclosure corporation pursuant to the proviso to [§35(1)], the provisions of paragraphs (1) through (3) shall not be applicable thereto, but in the event that the relevant corporation is given a prior notice on designation as unfaithful disclosure corporation during the grace period under [§13(5)2], the provisions of paragraphs (1) through (3) shall become applicable based on the day when the corporation is designated as unfaithful disclosure corporation pursuant to [§35] of the Regulation. [August 28, 2015]

#### **§14-2. Request for Replacement of Disclosure officer, etc. of Unfaithful Disclosure Corporation and Imposition of Demerit Points, etc.**

(1) “Where it is specified in the Enforcement Rules” in [§38-2(1)] of the Regulation shall refer to a case that falls under any of the following subparagraphs and the Exchange deems it necessary to replace the disclosure officer and staff:

1. Where the motivation and seriousness of violation falls under “intentional” and “significant violation”, respectively, according to the guidelines for deliberation of disciplinary actions against unfaithful disclosure under [Annex 2]; and
2. Where the corporation is designated as unfaithful disclosure corporation three (3) times or more in the latest one (1) year.

(2) In cases where a KOSPI-stock-listed corporation fails to replace its disclosure officer and disclosure staff within one (1) month from the date of the request for replacement under [§38-2 (1)] of the Regulation, the Exchange may impose demerit points up to two (2). Provided that, if, as a result of the imposition of the relevant demerit points, a listed stock issued by the KOSPI-stock-listed corporation is likely to be designated as administrative issue for the reason of violation of disclosure obligation pursuant to [§47] of the Listing Regulation, the relevant demerit points may be reduced or exempted through the deliberation by the Committee. (Amended on December 28, 2016)

[August 28, 2015]

#### **§15. Submission of Improvement Plan and Implementation Report, etc.**

(1) The improvement plan under [§39(2)] of the Regulation shall be prepared in accordance with [Annex: Form No. 1], stating the matters noted in each of the following subparagraphs, and submitted to the Exchange within ten (10) days from the date of the Exchange’s request for submission: (Amended on December 27, 2005; February 3,

2009; August 28, 2015)

1. Name of submitting corporation and the date of submission;
2. [Deleted on December 27, 2005]
3. Causes and process of the non-fulfillment of disclosure obligations;
4. Details of the improvement plan, including the structural reform necessary for prevention of recurrence of the nonfulfillment and the implementation schedule; and
5. Other matters necessary.

(2) The implementation report under [§39(2)] of the Regulation shall contain the matters noted in each of the following subparagraphs in accordance with [Annex: Form No. 2] and be submitted to the Exchange: [August 28, 2015]

1. Name of corporation submitting and the date of submission;
2. Causes and process of the noncompliance with disclosure obligations;
3. Details of implementation of the plans for improvement stated by the relevant corporation in the improvement plan; and
4. Other necessary matters.

(3) In cases where a KOSPI-stock-listed corporation has failed to submit the improvement plan or implementation report pursuant to paragraph (1) and paragraph (2), the Exchange may impose two (2) demerit points on such corporation. (Amended on December 27, 2005; February 3, 2009; December 3, 2010; August 28, 2015)

## **§16. Disclosure Matters subject to Trading Suspension and Duration thereof**

(1) The matters to be disclosed, which are subjected to trading suspension pursuant to [§40(1)2] of the Regulation, shall be any of the following subparagraphs: (Amended on December 27, 2005; February 3, 2009; July 2, 2009; December 21, 2009; June 23 2010; November 11, 2011; April 19, 2012; May 21, 2012; February 26, 2013; August 28, 2015; April 28, 2016; January 31, 2018; July 10, 2018)

1. Matters falling under subparagraphs 1(a), 2(a)(viii), 2(d)(v), 2(d)(vi), 2(e)(ii), 2(e)(vi)Ⓐ, 2(e)(vi)Ⓑ and 3(a)(v)] of [§7(1)] of the Regulation. Provided that this provision shall not apply to the matters concerned with the physical division under Article 530-12 of the Commercial Act, from among the matters to be disclosed under [§7(1)3(a)(v)] of the Regulation, and the matters to be disclosed on the outcome thereof, from among the matters to be disclosed under

[§7(1)2(e)(vi)Ⓐ&Ⓑ] of the Regulation;

2. Matters specified in the latter part of [§7(1)2(e)(i)] and [§7(1)2(e)(iii)Ⓑ]. Provided that, in the case of trading suspension due to insufficient sales in the latest fiscal year, this shall be limited to the case where the fact (including cases where the relevant details have been confirmed through other reports under these Enforcement Rules) is first confirmed, excluding cases falling under any of the items of [§47(1)7] of the KOSPI Market Listing Regulation. (Amended on October 20, 2025)

3. Matters falling under any of the following items. Provided that it shall be limited to the case where the relevant matter has been confirmed for the first time and it shall not apply to the same matters to be disclosed thereafter or the matters to be disclosed occurring in the process:

(a) Matters falling under any of the matters under [§7(1)3(b)(i) through (iv)] (including the related matters under subparagraph 1 of [§51]) and subparagraph 3 of [§51] of the Regulation; and

(b) As a case where a lawsuit is filed against a KOSPI-stock-listed corporation, from among the matters to be disclosed under [§7(1)3(c)(iv)] and subparagraph 2 of [§51] of the Regulation, the matters relating to the filing of a lawsuit and the application for permission thereof, the decision the permission to proceed with the lawsuit, and other court judgments or decisions.

4. From among the disclosure matters under [§7(1)2(a)(i) & (ii)] of the Regulation, a capital increase without consideration, the allotment ratio of which is 10% or higher, or a capital reduction or stock retirement, the amount of which is equivalent to 10% or more of the total number of stocks issued.

5. From among the disclosure matters under [§7(1)2(e)(iv)] of the Regulation, a stock dividend, the dividend ratio of which is 10% or higher;

6. Disclosure matters under [§7(1)3(a)(iv)] of the Regulation. This provision shall not apply to the matters on the simplified share swaps under Article 360-9 and the small-scale share swaps under Article 360-10 of the Commercial Act.

7. [Deleted on February 3, 2009]

8. Matters to be reported (limited to matters to be reported under [§7(1)3(b)(i) through (iii)] of the Regulation) on the same day pursuant to the proviso to [§8(1)] of the Regulation. In such cases, the proviso to the part other than each item of subparagraph 3 shall be applied *mutatis mutandis* thereto. (Amended on February 25, 2026)



8-2. Matters falling under [§11(1)4] of the Regulation or the matter falling under any of [§11(2)2(b) through (d)] of the Regulation; and

9. Matters equivalent to those under subparagraphs 1 through 8-2, and other matters for which the trading suspension is deemed necessary for the public interest, protection of investors and market management.

(2) Cases where it is deemed that the trading suspension is not necessary pursuant to [§40(3)3] of the Regulation shall refer to a case falling under any of the following subparagraphs; (Amended on October 20, 2025)

1. Where less than ten (10) demerit points are imposed; or [October 20, 2025]

2. Where rumors or reports regarding the main sentence of [§40(2)4(a)(iii)] of the Regulation fall under any of the items of [§47(1)7)] of the KOSPI Market Listing Regulation. [October 20, 2025]

(3) Pursuant to [§40(5)] of the Regulation, the duration of trading suspension shall be each of the following subparagraphs: (Amended on February 3, 2009; December 3, 2010; August 28, 2015)

1. Where [§40(1)1] of the Regulation applies, the trading shall resume when an inquired disclosure is made in response to the request for relevant inquired disclosure. Provided that, in cases where the matters to be disclosed falls under any subparagraph of [§40(2)] of the Regulation, it shall be subject to subparagraph 4;

2. Where [§40(1)2] of the Regulation applies, the trading shall resume when thirty (30) minutes have elapsed after the time of the relevant disclosure. Provided that the trading shall resume when thirty (30) minutes have elapsed after the opening of the regular session if the time of disclosure is before the opening of the regular session of the day, and if it is after sixty (60) minutes before the closing of the regular session under the main sentence of [§4(3)1] of the KOSPI Market Business Regulation, the trading shall resume on the following trading day;

3. Where [§40(1)3] of the Regulation applies, it shall be the period of one (1) day, which is the date of designation (if the date of designation is not a trading day, it shall be the first trading day following the date of designation); and

4. Where [§40(1)4] of the Regulation applies, if the disclosure on the result of inquiry on the causes for suspension (if it is related to ELW-listed corporations, it shall include the reporting under [§145] of the KOSPI Market Listing Regulation and if it is related to ETN-listed corporations, it shall include the reporting under

[§149-9] of the Listing Regulation; the same hereinafter in this Article) has been made, the trading shall resume thirty (30) minutes after the disclosure time. Provided that, if the disclosure time falls under the time under the proviso to subparagraph 2, the trading shall resume by applying the proviso to subparagraph 2 *mutatis mutandis*.

(4) Notwithstanding paragraph (3), the Exchange may extend the duration of the trading suspension in the case falling under any of the following subparagraphs. In such cases, the ELWs issued by the ELW-listing corporations and ETNs issued by the ETN-listed corporations falling under [§40(1)4] of the Regulation shall be included. (Amended on February 3, 2009; August 28, 2015)

1. Where the contents of a disclosure made by a KOSPI-stock-listed corporation or listed foreign corporation fall under the criteria for designating administrative issues pursuant to the Listing Regulation;
2. Where the rumors and news still persist even after having made the disclosure on the result of the inquiry; and
3. Case of other matters that may have a significant influence on the price and trading volume of the stocks, etc. issued by a KOSPI-stock-listed corporation and where the Exchange deems it necessary.

(5) The Exchange may provide information on trading suspension to a multilateral trading company when necessary for investor protection and market management. [February 27, 2025]

#### **§17. [Deleted on December 27, 2005]**

#### **§18. Withholding of Disclosures upon Request**

(1) “Disclosure matters stipulated in the Enforcement Rules” in [§43-2(1)] of the Regulation shall refer to the matters noted in each of the following subparagraphs: (Amended on April 28, 2016)

1. Case of disclosing the matters noted in [§7(1)1(c)] of the Regulation: Contract amount, counterparty of the contract, key contract conditions, cancellation amount, key reasons for cancellation, etc.;
2. Case of disclosing the matters noted in [§7(1)2(b)(i)] of the Regulation: Investment amount, investment purpose, etc.; and

3. Case of disclosing the matters noted in [§7(1)4] of the Regulation: The matters that the relevant KOSPI-stock-listed corporation has requested for, specifying the detailed reasons for keeping the business confidentiality and the scope of disclosure to be withheld.

(2) The request for withholding of disclosure pursuant to [§43-2(1)] of the Regulation shall be made in accordance with [Annex: Form No. 6].

[February 3, 2009]

#### **§18-2. Imposition of Demerit Points on Noncompliance with Request for Submission of Materials**

The demerit points under [§44(2)] of the Regulation shall be two (2).  
[April 28, 2016]

#### **§18-3. Exceptions to the Report of Changes in Disclosed Matters**

“Case that is specified in the Enforcement Rules” in the proviso to [§45] of the Regulation shall refer to the case where the starting date or ending date of the contract period changes within the range of twenty (20) days [it shall be three (3) months when the contract term is one (1) year or longer], respectively, or where the original contract amount changes by less than 10%, after making a disclosure pursuant to [§7(1)1c] of the Regulation (including the case where the relevant material business matter was disclosed voluntarily pursuant to subparagraph 20 of [§8] as its ratio is below the mandatory reporting ratio, and the case of reporting the changes in the details of a disclosure already made pursuant to [§45]). [April 30, 2015] (Amended on November 30, 2018; March 28, 2025)

#### **§18-4. English Disclosure**

(1) “Matters stipulated in the Enforcement Rules” in the proviso to [§48(1)] of the Regulation shall refer to matters related to the sustainable management report in subparagraph 7(e) of [§8]. [November 13, 2024]

(2) The standard for applying the total assets at the end of the latest fiscal year noted in the latter part of [§48(2)] of the Regulations shall be applied from the day after the four months following the end of each fiscal year to the day four months after the end of the following fiscal year. (Amended on January 30, 2026)

1. [Deleted on January 30, 2026]

2. [Deleted on January 30, 2026]

(3) Matters to be disclosed in English noted in the latter part of [§48(2)] of the Regulation shall refer to matters falling under [§7], [§8], [§12], [§14], [§15], [§16], [§25] (excluding matters determined in [§8-2] and [§28] from among matters in paragraph 1(1)] of the Regulation. (Amended on January 30, 2026)

1. [Deleted on January 30, 2026]

2. [Deleted on January 30, 2026]

3. [Deleted on January 30, 2026]

(4) The deadline for disclosure under the latter part of [§48(2)] of the Regulation shall be categorized as follows, based on the total assets as of the end of the latest fiscal year and foreign ownership ratio as of the end of fiscal year (applicable from the day after four months following the end of each fiscal year to the day fourth months following the end of the following fiscal year; the same shall apply hereinafter in this paragraph) of corporations required to disclose in English (hereinafter referred to as “corporation subject to English disclosure”) under the former part of [§48(2)] of the Regulations. (Amended January 30, 2026).

1. Corporations subject to English disclosure in the followings: The same day the Korean disclosure is made. Provided that, if the Korean disclosure is made in the afternoon, the deadline shall be the following morning, and, for matters subject to disclosure pursuant to [§8] of the Regulations, the deadline shall be within three trading days after the Korean disclosure is made: [January 30, 2026]

(a) Corporations with the total assets of KRW 10 trillion or more as of the end of the latest fiscal year and an average of 5% or more over the last three (3) fiscal years of foreign ownership ratio as of the end of fiscal year. [January 30, 2026]

(b) Corporations with the total assets of KRW 2 trillion or more but less than KRW 10 trillion as of the end of the latest fiscal year and an average of 30% or more over the last three (3) fiscal years of foreign ownership ratio as of the end of fiscal year. [January 30, 2026]

2. Corporations subject to English disclosure, other than those specified in subparagraph 1: [January 30, 2026]

(5) To ensure the smooth operation of English disclosure, the Exchange may support the

English translation of Korean disclosures by corporations listed on the KOSPI Market.  
(Amended on February 25, 2026)

[March 30, 2023]

#### **§18-5. Corporations Subject to Verification Procedure, etc.**

(1) “Bond-listed corporation specified in the Enforcement Rules” in [§56] of the Regulation shall refer to the bond-listed corporations under [§53(1)] of the Regulation.

(2) “Details of reports that are set forth in the Enforcement Rules” in [§56] of the Regulation shall refer to the material business matters under [§57] of the Regulation and the details of disclosure made in response to the request for inquired disclosure pursuant to [§57-2] of the Regulation.

[August 28, 2015]

#### **§19. Receipt and Management, etc. of Reporting Documents**

With respect to the documents that are reported by KOSPI-stock-listed corporations, etc. pursuant to the relevant laws and regulations, the Exchange shall record and manage them according to the names of reporting corporations, receiving times, disclosure times, titles of documents, etc. Provided that this provision shall not apply to the cases of submitting the disclosure documents through the electronic disclosure system under [§4(1)]. (Amended on December 27, 2005; February 3, 2009)

#### **§20. Disclosure of Matters Requiring Authorization, etc.**

In relation to the disclosure pursuant to the relevant laws and regulations, a KOSPI-stock-listed corporation may, when disclosing the matters that are subject to the authorization of, permission of or reporting to the relevant authorities, append the fact that the details of the relevant disclosure may be changed in the course of the authorization, permission, or acceptance of the reporting. (Amended on December 27, 2005; February 3, 2009)

#### **§21. Registration of Submitter**

(1) Pursuant to [§65(1)] of the Regulation, a person who intends to register the submitter or to change the registration information shall connect to the electronic disclosure system of the Exchange and register the details relating to submission of electronic documents, including name and address of the submitter. (Amended on

February 3, 2009)

(2) When the registration of submitter or change of registration information pursuant to paragraph (1) is completed, the Exchange shall issue a registration notification to the submitter.

## **§22. Submission of Copy of Registration Notification**

In cases where the registration of submitter or changes of registration information is carried out by connecting to the electronic disclosure system of the Financial Supervisory Service pursuant to the Regulation on Issuance of Securities and Disclosure, a copy of registration notification issued by the Financial Supervisory Service may be submitted instead of the copies of documents relating to the submitter registration that were submitted to the Financial Supervisory Service pursuant to the proviso to [§65(1)] and [§76(2)] of the Regulation. (Amended on December 27, 2005; February 3, 2009)

## **§23. Submission of Paper Copies**

“Documents set forth in the Enforcement Rules” in [§66(3)] of the Regulation shall refer to each of following documents: (Amended on December 27, 2005; February 3, 2009)

1. Certificates and other documents issued by the government agencies or local governments, which are difficult to convert into the electronic documents because of its large volume; and
2. Other documents which are difficult to convert into electronic documents or have no practical benefit to convert into electronic documents.

## **§24. Training of Disclosure Officers and Disclosure Staff, etc.**

(1) The training courses that a disclosure officer and disclosure staff are required to complete pursuant to [§88(4)] of the Regulation shall be each of the followings. Provided that, in cases where the custodian or the preservation custodian prescribed in the Debtor Rehabilitation and Bankruptcy Act is deemed as the disclosure officer as it falls under the proviso to [§2(4)] of the Regulation, the provisions of subparagraphs 1 through 4 may not apply with respect to the training courses that the disclosure officer shall complete. (Amended on February 3, 2009; August 28, 2015)

1. Training courses specialized for disclosure officers or the stock training courses

that are provided by the Exchange or the Korea Listed Companies Association (hereinafter referred to as “the Association”);

2. Presentation sessions on disclosure-related laws and regulations organized by the Exchange or the Association;

3. Education programs for unfaithful disclosure corporations under [§38] of the Regulation; and

4. In addition to subparagraphs 1 through 3, any other training programs recognized by the Exchange.

(2) The persons who are subject to the training courses or education programs under each subparagraph of paragraph (1) and the deadlines for the completion thereof shall be as noted in each of the following subparagraphs: (Amended on December 27, 2005; February 3, 2009; June 16, 2011; February 26, 2013; August 28, 2015)

1. Any newly registered disclosure officer or disclosure staff shall complete the training courses under paragraph (1)1 by the end of sixth (6<sup>th</sup>) month from the date of new registration (in the case of initially listed corporations, the initial listing date; the same hereinafter). Provided that this shall not apply to the case where the Exchange deems completion of training courses unnecessary as the officer or staff falls under any of the following:

(a) Where he/she has completed the training courses under paragraph (1)1 (for disclosure officers, it shall include subparagraph 2) within the latest one (1) year from the date of new registration;

(b) Where he/she has completed the training courses under paragraph (1)1 (for disclosure officers, it shall include subparagraph 2) before the date of new registration and the training programs under subparagraph 2 by the end of sixth (6<sup>th</sup>) month from the date of new registration; and

(c) Other cases where the Exchange deems the completion of education unnecessary.

2. The disclosure officers and disclosure staff other than those stated in subparagraph 1 shall complete the training courses under paragraph 1 (excluding subparagraph 3) for at least four (4) hours every two (2) years and at least eight (8) hours each year [at least four (4) hours for those who have been registered as disclosure staff for more than five (5) years], respectively. Provided that this shall not apply for the year corresponding to the period when the training courses under subparagraph 1 shall be completed, and, for the disclosure staff of a KOSPI-stock-

listed corporation selected as an outstanding disclosure corporation, this shall not apply for the year in which the month of such appointment falls.

3. Notwithstanding subparagraphs 1 and 2, in the case of a corporation required to complete the training programs for unfaithful disclosure corporation in accordance with [§38] of the Regulation, the disclosure officer and more than one (1) staff member responsible for disclosure of the relevant corporation shall complete the training programs under paragraph (1)3 within six (6) months from the date of the unfaithful disclosure corporation designation, as set forth by the Exchange. (Amended on December 27, 2005; February 3, 2009; June 16, 2011; December 10, 2020)

4. [Deleted on June 16, 2011]

(3) When the disclosure officer and disclosure staff have completed the training programs under paragraph (1), they shall submit to the Exchange a document certifying such fact, without delay. Provided that this provision shall not apply to the case where the training program is provided by the Exchange or a training institution notifies the Exchange of the details of completion of the training programs. (Amended on December 27, 2005; February 3, 2009)

(4) In cases where a disclosure officer and disclosure staff of a KOSPI-stock-listed corporation fails to complete the training courses or programs under paragraphs (2)1 through (2)3, the Exchange may issue a caution or warning to the relevant KOSPI-stock-listed corporation, or request for replacement of the disclosure officer or disclosure staff. Provided that this provision shall not apply in cases of a natural disaster, calamity, war, emergency, rapid change in economic conditions and other similar events or in cases where the relevant KOSPI-stock-listed corporation was inevitably unable to complete the training programs due to the circumstances of the corporation and completes another training program determined by the Exchange. (Amended on December 27, 2005; February 3, 2009; August 28, 2015; December 10, 2020)

(5) In cases where the KOSPI-stock-listed corporation fails to replace the relevant disclosure officer or disclosure staff as requested and register the changes within one (1) month from the date of the Exchange's request for replacement pursuant to paragraph (4), the Exchange may impose two (2) demerit points on the relevant KOSPI-stock-listed corporation. Provided that, if, due to the relevant demerit points imposed, a listed stock issued by the relevant KOSPI-stock-listed corporation is likely be designated as an administrative issue for the reason of noncompliance with disclosure obligations pursuant to the Listing Regulation, the relevant demerit points imposed may be reduced or exempted through the deliberation by the Committee. (Amended on December 27, 2005; February 3, 2009; February 26, 2013; December 28, 2016; December 10, 2020)



(6) Notwithstanding paragraphs (1) and (2), in cases where the disclosure officer and disclosure staff under [§26] of the Regulation complete the training programs that are provided separately by the Exchange, it shall be deemed that the training programs under [§38] and [§88(4)] of the Regulation have duly been completed. [February 26, 2013].

## **§25. Calculation of Time Periods**

Calculation of time periods under [§91] of the Regulation shall be made according to each of the followings: (Amended on February 3, 2009; July 2, 2009; January 21, 2011; November 11, 2011; April 30, 2015; April 28, 2016)

1. If a period has been fixed by the day, the first day of such period shall not be included in the computation, and the computation shall be made based on the trading day. Provided that the number of corporate holidays such as the collective vacation, anniversaries, etc. of KOSPI-stock-listed corporations shall not be included in the period, but the year-end market closing days under subparagraph 4 of [§5] of the KOSPI Market Business Regulation shall be included (excluding the number of corporate holidays);
2. Notwithstanding subparagraph 1, the number of days in the periods referred to in [§7(1)2(e)(iv)], the proviso to [§12(2)], [§30(1)3], [§30(2)], [§82] and [§18-3] of the Regulation shall be computed according to the calendar;
3. If a period has been fixed by the week or month, it shall be computed according to the calendar;
4. If a period is not calculated from the first day of a week or month, such period shall end on the date preceding the relevant initial date of calculation in the last week or month of the relevant period. Provided that, if there is no such date in the last month, it shall end on the last day of the month;
5. The cut-off time for the same day or the next day disclosure and the inquired disclosure with the deadline in the afternoon shall be 18:00 hours of the relevant day. Provided that, in the case of the deadline for the same day and next day disclosure, if there are unavoidable reasons such as the case where the matter to be reported occurs after 18:00 hours of the deadline, the reporting may be made by ten (10) minutes before the opening of pre-hour session on the next day [thirty (30) minutes before the opening of the regular session, if the pre-hours session is not open]; and
6. In the case of the deadline for simultaneous disclosure by listed foreign

corporations, if there is an unavoidable reason that the reporting cannot be made at the same time, such as the case where the matter to be reported occurs after 18:00 hours, the reporting may be made by ten (10) minutes before the opening of pre-hour session on the next day [thirty (30) minutes before the opening of the regular session, if the pre-hours session is not open].

(Wholly amended on December 27, 2005)

## **§26. Public Opinion Gathering**

Public opinion gathering pursuant to [§91-2] of the Regulation shall be governed by the provisions of [§5] of the Internal Regulations Management Regulation and [§6] of the Regulations Management Regulation.

[May 7, 2020]

## **ADDENDA**

(January 24, 2005)

### **§1. Effective Date**

These Enforcement Rules shall become effective on the incorporation date of the Exchange.

### **§2. Abolition of former Regulations**

On the effective date of these Enforcement Rules, the Enforcement Rules of the Disclosure Regulation and the Enforcement Rules of the Regulation on Electronic Submission of Reports, etc. by Listed Corporations of the former Korea Stock Exchange shall be abolished.

### **§3. Transitional Measures Following the Abolition of Previous Enforcement Rules**

The actions such as reporting, etc. pursuant to the Enforcement Rules of Disclosure Regulation and the Enforcement Rules of the Regulation on Electronic Submission of Reports, etc. by Listed Corporations of the former Korea Stock Exchange prior to the effective date of these Enforcement Rules shall be construed as the reporting, etc. pursuant to these Enforcement Rules.

## **ADDENDUM**

(December 27, 2005)

These Enforcement Rules shall become effective on April 1, 2006. Provided that the amended provisions of [§14 and §15] shall become effective on December 28, 2005 and the amended provisions of [§25] shall be effective on January 1, 2006.

## **ADDENDUM**

(September 11, 2006)

These Enforcement Rules shall become effective on September 18, 2006.

## **ADDENDUM**

(September 23, 2008)

These Enforcement Rules shall become effective on October1, 2008.

**ADDENDUM**  
(February 3, 2009)

These Enforcement Rules shall become effective on February 4, 2009.

**ADDENDUM**  
(July 2, 2009)

These Enforcement Rules shall become effective on July 6, 2009.

**ADDENDUM**  
(December 21, 2009)

These Enforcement Rules shall become effective on December 21, 2009.

**ADDENDA**  
(June 23, 2010)

§1. Effective Date

These Enforcement Rules shall become effective on July 1, 2010.

§2. Exceptions

The amended provisions of [§13, §13-3 and §14] shall be put into practice beginning from the company designated and notified as unfaithful disclosure designation after the effective date of these Enforcement Rules.

**ADDENDA**  
(September 1, 2010)

§1. Effective Date

These Enforcement Rules shall become effective on September 6, 2010.

## §2. Effective Date of KOSPI Market Disclosure Regulation

“The day specified in the Enforcement Rules” noted in Addendum of Regulation (dated on April 21, 2010) shall refer to September 6, 2010.

### **ADDENDA** (December 3, 2010)

#### §1. Effective Date

These Enforcement Rules shall become effective on January 1, 2011.

#### §2. Exceptions

Even though the amended provisions of [§8/7b] has been put into effect, the fact of designation may be disclosed within one (1) month from the effective date of these Enforcement Rules.

### **ADDENDUM** (January 21, 2011)

These Enforcement Rules shall become effective on March 1, 2011.

### **ADDENDUM** (June 16, 2011)

These Enforcement Rules shall become effective on June 20, 2011.

### **ADDENDUM** (November 11, 2011)

These Enforcement Rules shall become effective on November 21, 2011.

### **ADDENDUM** (April 19, 2012)

These Enforcement Rules shall become effective on April 23, 2012.

**ADDENDA**  
(May 21, 2012)

§1. Effective Date

These Enforcement Rules shall become effective on May 22, 2012.

§2. Exceptions in Imposing Penalty points to Unfaithful Disclosure Corporation

The amended provisions of [§13 and §13-3] shall be applied starting with the company receives a prior notice informing the designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

**ADDENDA**  
(February 26, 2013)

§1. Effective Date

These Enforcement Rules shall become effective on March 4, 2013. Provided that the amended provisions of [§4-2] through [§4-5] and [§13(4)2] and [Annex 2] (limited to subparagraph 2(a)(viii)) shall become effective on May 2, 2013.

§2. Exception in Taking Measures against Unfaithful Disclosure Corporation

The amended provisions of [§13] shall be applied starting with the company that receives the prior notice on the designation as an unfaithful disclosure corporation after the effective date of these Enforcement Rules.

§3. Exceptions to Training Requirements of Disclosure Officer and Staff Member Responsible for Disclosure

The amended provisions of [§24(2)1 & 2] shall be applied starting with the disclosure officer and staff member responsible for disclosure whose new appointment registration date belongs to the year 2012.

**ADDENDA**  
(March 26, 2013)

§1. Effective Date

These Enforcement Rules shall become effective on April 2, 2013.

## §2. Effective Date of KOSPI Market Disclosure Regulation

The “date specified in the Enforcement Rules” noted in [1] of the Addendum of KOSPI Market Disclosure Regulation amended on February 26, 2013 shall refer to April 2, 2013.

## §3. Exceptions in Designation as Unfaithful Disclosure Corporation

The amended provisions of Annex 2 of these Enforcement Rules shall be applied starting with the company that is designated as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

### **ADDENDUM** (May 13, 2013)

These Enforcement Rules shall become effective on May 20, 2013.

### **ADDENDA** (July 11, 2013)

## §1. Effective Date

These Enforcement Rules shall become effective on July 29, 2013.

## §2. Exceptions in applying Provisions on Designation of Unfaithful Disclosure Corporations

The amended provisions of [Annex 2] shall be applied starting with the corporation that is forewarned on designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

### **ADDENDA** (August 28, 2015)

## §1. Effective Date

These Enforcement Rules shall become effective on September 7, 2015. Provided that

the amended provisions of [§4-2, §18-3 and §24(2) 1] and [Annex 3] shall become effective on January 1, 2016.

## §2. Case of Application of Provisions on Corporations subject to Verification Procedure

In applying the amended provisions of [§4-2] and [Annex 3], a corporation that does not fall under the causes for release from the corporation subject to confirmation process noted in the amended provisions, as of the effective date of these Enforcement Rules, shall be appointed as a corporation subject to verification procedure and released at the time specified in the amended provisions.

## §3. Case of Application of the Guidelines for Imposing the Fine for Noncompliance with Disclosure Obligations and the Guidelines for Deliberation of Disciplinary Actions against Unfaithful Disclosure under [Annex 2]

The amended provisions of [§13-3] and the guidelines for deliberation of disciplinary actions against unfaithful disclosure under [Annex 2] shall apply starting with the corporation that receives a prior notice on the designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

### **ADDENDUM**

(April 28, 2016)

These Enforcement Rules shall become effective on May 2, 2016.

### **ADDENDUM**

(July 28, 2016)

These Enforcement Rules shall become effective on August 1, 2016.

### **ADDENDA**

(December 28, 2016)

## §1. Effective Date

These Enforcement Rules shall become effective on January 2, 2017. Provided that the amended provisions of [§13-3] shall become effective in April 3, 2017.

## §2. Case of Application of Provisions on Fine for Noncompliance with Disclosure Obligations



The amended provisions of [§13-3] shall apply starting with the corporation that is prior notified on designation as an unfaithful disclosure corporation after the effective date of this Regulation.

**ADDENDA**  
(March 9, 2017)

§1. Effective Date

These Enforcement Rules shall become effective on March 10, 2017.

§2. Case of Application

In cases where the reporting deadline specified in the latter part of subparagraph 7-2 under [§8] arrives before December 31, 2017, it shall be deemed that the report has been made within six (6) months from the statutory deadline for filing of annual reports.

**ADDENDUM**  
(June 20, 2017)

These Enforcement Rules shall become effective on June 21, 2017.

**ADDENDA**  
(January 31, 2018)

§1. Effective Date

These Enforcement Rules shall become effective on February 1, 2018.

§2. Case of Application

The amended provisions of [Annex 2] shall apply starting with the corporation that is prior notified on designation as an unfaithful disclosure corporation after the effective date of this Regulation.

**ADDENDUM**  
(July 10, 2018)

These Enforcement Rules shall become effective on July 11, 2018.

**ADDENDA**  
(November 30, 2018)

§1. Effective Date

These Enforcement Rules shall become effective on September 30, 2019.

§2. Abolition of Other Regulation

The amended provisions of [§12(3)1], [§13(1)], [§13-3(1)1], [§16(2)] and [Annex 2] shall apply starting with the corporation that is forewarned on the designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

**ADDENDUM**  
(January 2, 2019)

These Enforcement Rules shall become effective on January 2, 2019.

**ADDENDA**  
(September 25, 2019)

§1. Effective Date

These Enforcement Rules shall become effective on September 30, 2019.

§2. Abolition of Other Regulations

The “Certification Standards for Disclosure Professionals of the KOSPI Market” shall be abolished at the time these Enforcement Rules take effect.

**ADDENDA**  
(December 27, 2019)

§1. Effective Date

These Enforcement Rules shall become effective on January 2, 2020. Provided that the

amended provisions of [Annex 3] shall become effective on January 31, 2020.

## §2. Case of Application of Provisions on Designation as Unfaithful Disclosure Corporations

The amended provisions of [§13-3(1)], [§14(2)] and [Annex 2] shall apply starting with the corporation that is prior notified on designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

## §3. Case of Application of Provisions on Corporations subject to Verification Procedures

The amended provisions of [Annex 3] shall also apply to a case where the ground for having been designated as unfaithful disclosure corporation that occurred before the effective date of these Enforcement Rules was “application by the corporation” and the timing of release from such designation has not yet arrived. In such cases, “the date set at the time of application” shall be construed as “the effective date of these Enforcement Rules”.

### **ADDENDUM** (May 7, 2020)

These Enforcement Rules shall become effective on May 8, 2020.

### **ADDENDUM** (July 29, 2020)

These Enforcement Rules shall become effective on August 5, 2020.

### **ADDENDUM** (December 10, 2020)

These Enforcement Rules shall become effective on January 2, 2021.

### **ADDENDUM** (November 25, 2021)

These Enforcement Rules shall become effective on December 13, 2021.

### **ADDENDUM** (March 30, 2023)

These Enforcement Rules shall become effective on January 1, 2024. Provided that the amended provisions of [§32(1)6] shall become effective from April 1, 2023.

#### **ADDENDA**

(Regulation No. 2184 / November 21, 2023)

##### **§1. Effective Date**

These Enforcement Rules shall become effective on November 22, 2023.

##### **§2. Case of Application of Provisions on Designation as Unfaithful Disclosure Corporations**

The amended provisions of [Annex 2] shall apply starting with the corporation that is prior notified on designation as unfaithful disclosure corporation after the effective date of these Enforcement Rules.

#### **ADDENDUM**

(Regulation No. 2233 / May 23, 2024)

These Enforcement Rules shall become effective on May 27, 2024.

#### **ADDENDUM**

(Regulation No. 2270 / November 14, 2024)

These Enforcement Rules shall become effective on December 1, 2024.

#### **ADDENDUM**

(Regulation No. 2293 / February 27, 2025)

These Enforcement Rules shall become effective on March 4, 2025.

#### **ADDENDA**

(Regulation No. 2320 / March 28, 2025)

##### **§1. Effective Date**

These Enforcement Rules shall become effective on April 1, 2025. Provided that the

amended provisions of [§8(19)] shall become effective on July 1, 2025.

## §2. Case of Application of Voluntary Disclosure on Improvement Plan

The amended provisions of [§8(19)] shall apply starting with the corporation granted an improvement period after the effective date of these Enforcement Rules.

## §3. Case of Application of Deferral of Designation of Unfaithful Disclosure Corporation

The amended provisions of [§13(1)] shall apply starting with the corporation that receives a prior notice on the designation as an unfaithful disclosure corporation after the effective date of these Enforcement Rules.

### **ADDENDUM**

(Regulation No. 2347 / July 16, 2025)

These Enforcement Rules shall become effective on August 1, 2025.

### **ADDENDA**

(Regulation No. 2365 / October 20, 2025)

## §1. Effective Date

These Enforcement Rules shall become effective on October 22, 2025. Provided that the amended provisions of [§16] shall become effective on January 1, 2026.

## §2. Case of Application

The amended provisions of [§13(5)], [§13-3(2)1], and [§13-3(3)] shall apply starting with the corporation that receives a prior notice on the designation as an unfaithful disclosure corporation after the effective date of these Enforcement Rules.

### **ADDENDA**

(Regulation No. 2407 / January 30, 2026)

## §1. Effective Date

These Enforcement Rules shall become effective on March 1, 2026. Provided that the amended provisions (excluding the part concerning the disclosure of matters related to the resolution of the general shareholders' meeting pursuant to [§7(1)3] of the

Regulations; the same hereinafter) of [§18-4(3)] shall become effective on May 1, 2026.

## §2. Case of Application concerning Disclosure Matters of Corporations subject to English Disclosure

Corporations required to make disclosures in English pursuant to the previous provisions before the enforcement of the revised provisions of [§18-4(3)] are limited to those corporations subject to the revised provisions of [§18-4(4)1(a) and (b)]. In this case, the disclosure deadline for such English disclosures shall be within three (3) trading days after the relevant Korean disclosure is made, notwithstanding the revised provisions other than each items of [§18-4(4)1].

### **ADDENDA**

(Regulation No. 2412 / February 25, 2026)

## §1. Effective Date

These Enforcement Rules shall become effective on February 25, 2026. Provided that the amended provisions of [§18-4(5)] and [Annex 2] shall become effective on March 1, 2026.

## §2. Case of Application concerning Reduction of Demerit Points of Unfaithful Disclosure Corporation

The amended provisions of [Annex 2] shall apply starting with the corporation that receives a prior notice on the designation as an unfaithful disclosure corporation after the effective date of these Enforcement Rules.



**[Annex 1] [Deleted on March 26, 2013]**



## **[Annex 2] Guidelines for Deliberation of Disciplinary Actions against Unfaithful Disclosure**

[May 21, 2012] (Amended on February 26, 2013; July 11, 2013; April 28, 2016; July 28, 2016; January 31, 2018; November 30, 2018; January 2, 2019; December 27, 2019; December 13, 2021; March 30, 2023; November 21, 2023; February 25, 2026)

### **Guidelines for Deliberation on Disciplinary Actions against Unfaithful Disclosure**

(pertaining to [§13] of the Enforcement Rules)

#### **1. Guidelines for Deliberation of Disciplinary Actions**

By taking into consideration the reasons for addition and reduction based on the seriousness of violation and motivation for noncompliance, whether or not to designate as unfaithful disclosure corporation, the demerit points to be imposed and the imposition of fines shall be deliberated.

#### **Guidelines for Deliberation of Disciplinary Actions**

(Unit: points)

| <div>Motivation<br/>Seriousness</div> | Intentional | Gross<br>Negligence | Ordinary<br>Negligence | Insignificant<br>Negligence |
|---------------------------------------|-------------|---------------------|------------------------|-----------------------------|
| Significant violation                 | 10          | 8                   | 6                      | 4                           |
| Ordinary violation                    | 8           | 6                   | 4                      | 2                           |
| Insignificant violation               | 6           | 4                   | 2                      | 0                           |

#### **2. Seriousness of Violation and Motivation for Violation**

##### **(a) Seriousness of Violation**

(i) ① A significant violation refers to a violation of disclosure obligations for matters that may materially affect investor decisions, including non-compliance with disclosure obligations for the matters prescribed in [§27] of the Regulation, non-compliance with disclosure obligations which is subject to trading suspension under [§40(1)2] of the Regulation, and non-compliance with disclosure obligations related to administrative issues and delisting under [§153] of the KOSPI Market Listing Regulation.

(ii) ② An ordinary violation refers to the noncompliance with disclosure obligations under [§7] through [§11] of the Regulation that do not fall under the significant violations noted in above, the noncompliance with fair disclosure obligations under [§15] and [§16] of the Regulation, the noncompliance with obligations to disclose the report on corporate governance under [§24-2] of the Regulation, and the noncompliance with voluntary disclosure obligations under [§28] of the Regulation.

(iii) ③ An insignificant violation refers to the noncompliance with disclosure obligations, among the violations of disclosure obligations with respect to the disclosure of the expiration of withholding period of disclosure matters to be withheld or the disclosure of the release from the withholding conditions stipulated in [§43-2] of the Regulation and the noncompliance with disclosure obligations under [§45] of the Regulation, those that do not fall under or above.

(iv) In relation to [§12(1)] of the Regulation, in cases where it has failed to comply with the deadline of inquired disclosure or the details disclosed fall under subparagraph 3 of [§43] of the Regulation, or where it falls under [§30(1)2] of the Regulation, the demerit points imposed for noncompliance with the disclosure obligation corresponding to the details of the relevant rumor, etc. shall apply.

(v) In relation to [§12(2)] of the Regulation, in cases where it has failed to disclose by the deadline of inquired disclosure or the details disclosed fall under subparagraph 3 of [§43] of the Regulation, or where it falls under [§30(1)3] of the Regulation, the demerit points imposed for noncompliance with the disclosure obligation corresponding to the details of the relevant disclosure shall apply.

(vi) In cases where it has failed to re-disclose the interim disclosure made pursuant to [§14(1)] of the Regulation, the demerit points imposed for noncompliance with the disclosure obligation corresponding to the details of the relevant interim disclosure shall apply.

(vii) In the case of intending to take measures against the reversal of disclosure after assessing the details of disclosure pursuant to [§30(2)] of the Regulation, the demerit points imposed for noncompliance with the disclosure obligation corresponding to the details of the relevant disclosure shall apply.

(viii) In cases where after having received the request for correction disclosure from the Exchange pursuant to [§45-2] of the Regulation, it has failed to make the correction disclosure by the deadline of the relevant correction disclosure, the demerit points imposed for noncompliance with the disclosure obligation corresponding to the details of the relevant disclosure shall apply.

(b) Motivation for Violation

(i) Intentional: The intent of violation is reasonably estimated through the related facts, such as violation by intention, violation due to unlawful act, etc.

(ii) Gross negligence: Due care is significantly breached, or the intent of violation is partially estimated through the related facts.

(iii) Ordinary Negligence: a breach of general due care.

(iv) Insignificant Negligence: The degree of breach of due care is insignificant, or there is any reason for special consideration in relation to the purpose, motivation or circumstances of the violation.

3. Guidelines for Increase or Reduction of Demerit Points

(a) The increase and reduction of demerit points based on the grounds for increase and reduction shall be no more than two (2) points after adding up points for each ground.

(b) In cases where the Committee deems it necessary to impose an additional increase or reduction of demerit points in addition to the increase and reduction of demerit points determined under (a), it may decide the additional demerit points within the range of four (4) points in accordance with the table entitled “Guidelines for Deliberation of Disciplinary Actions”. Provided that the maximum demerit points shall be 14 and the minimum zero (0).

3. Guidelines for Combined Deliberation

4.

(a) Cases subject to deliberation

In the case where it is recognized that multiple violations of the disclosure obligation have occurred due to the same or similar causal acts or facts, they may be deliberated as one violation of the disclosure obligation (hereinafter referred to as “combined deliberation”) by merging them.

(b) Guidelines for deliberation

(i) The final demerit point shall be determined by adding one (1) demerit point for

each violation that is combined to the highest demerit point from among the demerit points calculated for each violation of the disclosure obligation (referring to the demerit point after reflecting the reasons for the aggravation and reduction). However, considering the impact of the combined violations on the market, all or part of the demerit points may not be added.

(ii) In the case where the disciplinary actions resulting from the combined deliberation are deemed to be less favorable than when deliberated individually for each violation of the disclosure obligation, the combined deliberation may not be applied.

## 5. Guidelines for Concurrent Deliberation

### (a) Cases subject to deliberation

In the case where the Exchange deems it necessary to concurrently deliberate on multiple violations of the disclosure obligation in a situation where, because of multiple violations of the disclosure obligation occurred on the same day, a corporation receives a prior notice for the designation as an unfaithful disclosure corporation or a corporation that already received a prior notice for the designation as an unfaithful disclosure corporation receives an additional prior notice for the designation as an unfaithful disclosure corporation, it may concurrently deliberate on multiple violations of the disclosure obligation (hereinafter referred to as "concurrent deliberation").

### (b) Guidelines for deliberation

Demerit points shall be calculated for each violation of the disclosure obligation, but the ground for reduction related to the non-designation of an unfaithful disclosure corporation for a certain period shall apply only to one (1) of the violations of the disclosure obligation

### **Grounds for Increase or Reduction of Demerit Points**

|           | Grounds                                                                                                                                                                                                                                                                                                                                                                                                                         | Point | Limit                  |
|-----------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|------------------------|
| Increase  | Case of having been designated as an unfaithful disclosure corporation two (2) times or more within the past one (1) year                                                                                                                                                                                                                                                                                                       | +2    |                        |
|           | Case of having been designated as an unfaithful disclosure corporation (one (1) time) within the past one (1) year                                                                                                                                                                                                                                                                                                              | +1    |                        |
|           | Case of having received an advance notice of the designation as an unfaithful disclosure corporation or a warning in relation to unfaithful disclosure within the past one (1) year                                                                                                                                                                                                                                             | +0.5  |                        |
|           | Case where, to conceal or play down the matter, false documents were submitted or relevant materials were withheld                                                                                                                                                                                                                                                                                                              | +1    |                        |
|           | Case where, in view of noncompliance with the disclosure obligation, it is deemed that the internal control system of the relevant company is not adequately set up                                                                                                                                                                                                                                                             | +1    |                        |
|           | Case of having convened the general meeting of shareholders on the concentrated date of shareholders' general meetings and failed to fulfill the reporting obligations under [§79(3)] of the Regulation with respect to the reason for determining the holding date                                                                                                                                                             | +1    |                        |
|           | Case where the officer in charge of disclosure has not completed the mandatory training specified in [§88] of the Regulation                                                                                                                                                                                                                                                                                                    | +0.5  |                        |
|           | Case where any one of the employees responsible for disclosures has not completed the mandatory training specified in [§88] of the Regulation                                                                                                                                                                                                                                                                                   | +0.5  |                        |
| Reduction | Case of voluntarily reporting/disclosing the violation before the Exchange has noticed the fact of noncompliance                                                                                                                                                                                                                                                                                                                | -1    | Within<br>±2<br>points |
|           | Case of having not been designated as an unfaithful disclosure corporation within the past three (3) years                                                                                                                                                                                                                                                                                                                      | -1    |                        |
|           | Case of having not been designated as an unfaithful disclosure corporation within the past one (1) year and falling under each of the following grounds:                                                                                                                                                                                                                                                                        |       |                        |
|           | - The company or the person responsible for disclosure has received an award from a relevant organization in relation to the faithful fulfillment of disclosure obligations or investor relations conference within the past three (3) years                                                                                                                                                                                    | -0.5  |                        |
|           | - Case of having organized at least two (2) IR conferences within the past one (1) year and filed reports thereon                                                                                                                                                                                                                                                                                                               | -0.5  |                        |
|           | - Case where the ratio of voluntary disclosures (including the explanation disclosure pursuant to [§27(1)] of the Regulation) to total disclosures within the past one (1) year was five (5) % or higher, and the number of voluntary disclosures made during the same period was five (5) or more                                                                                                                              | -0.5  |                        |
|           | - Case where the officer and the employee responsible for disclosure of the company have been certified as a disclosure specialist pursuant to the Guidelines for Certification of Disclosure Specialist; Provided that it shall be limited to one (1) time.                                                                                                                                                                    | -1    |                        |
|           | - Case where the rate of English disclosures was at least 10 % and the number of English disclosures was five (5) or higher within the past one (1) year, or case where the rate and the number of English disclosures of a KOSPI-stock-listed-corporation that has an obligation to disclose in English pursuant to [§48(2)] of the Regulation is 15% or more and 10 cases or more, respectively, within the past one (1) year | -1    |                        |
|           | Case where the matters to be disclosed occurred sequentially as a specific matter progresses, and the initial disclosure thereof was made before the disclosure deadline                                                                                                                                                                                                                                                        | -1    |                        |

|  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |      |  |
|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|--|
|  | Case of having participated in the ‘Program for Compliance with Distributed Shareholders’ Meeting’ of the Korea Listed Companies Association and held a general meeting of shareholders for the latest fiscal year on a date other than during the ‘concentrated period’.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | -1   |  |
|  | In cases where the Articles of Incorporation stipulate that the regular general meeting of shareholders may be held after three (3) months from the end of the fiscal year, and regular general meetings of shareholders have been held in a distributed manner for the past three (3) consecutive fiscal years in accordance with the Korea Listed Companies Association's "Voluntary Compliance Program for Distributed General Meetings of Shareholders", and where it has been decided at the recent regular general meeting of shareholders that voting rights may be exercised electronically in accordance with Article 368-4, Paragraph 1 of the Commercial Act (excluding cases where the deadline for submitting business reports has been extended in accordance with Article 165, Paragraph 3 of the Financial Investment Services and Capital Markets Act) | -0.5 |  |

**[Annex 3] Designation of and Release from Corporations subject to Verification Procedure: Grounds & Timing Thereof**

(Amended on December 27, 2019)

**Designation of and Release from Corporations subject to Verification Procedure:  
Grounds & Timing Thereof**

(pertaining to [§4-2] of the Enforcement Rules)

| <b>Designation of Corporations Subject to Verification Procedure</b> |                                                          | <b>Release from Corporations Subject to Verification Procedure</b>                 |                                                                         |
|----------------------------------------------------------------------|----------------------------------------------------------|------------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| <b>Grounds for Designation</b>                                       | <b>Timing of Designation</b>                             | <b>Grounds for Release</b>                                                         | <b>Timing of Release</b>                                                |
| Initial listing                                                      | Listing date                                             | When 3 years have elapsed since the listing date                                   | The date of occurrence of the ground for release                        |
| Designated as unfaithful disclosure corporation                      | Designation date                                         | When 3 years have elapsed since the designation date                               |                                                                         |
| Designated as administrative issue                                   | Designation Date                                         | When 3 years have elapsed since the date of release from administrative issue      |                                                                         |
| Occurrence of reasons for delisting                                  | The next day following the day when the ground confirmed | When 3 years have elapsed since the date when the cause for delisting was resolved |                                                                         |
| Application by the corporation                                       | The date set at the time of application                  | When 3 years have elapsed since the date set at the time of application            |                                                                         |
|                                                                      |                                                          | When the ground for designation was resolved                                       | The next day following the date of occurrence of the ground for release |
| Where the Exchange deems it necessary for investor protection        | The date set by the Exchange                             | When the ground for designation was resolved                                       |                                                                         |

## **[Annex 4] Standards for Certification of Disclosure Professionals**

[September 25, 2019]

### **Standards for Certification of Disclosure Professionals**

#### **1. Certification of disclosure professionals**

- (a) The Exchange shall certify a person who has completed the trading courses referred to in subparagraph 2 and passed the prescribed evaluation as a disclosure professional.
- (b) The Exchange shall issue a “certificate of disclosure professional” to a person who is certified as a disclosure professional under item (a).

#### **2. Certification courses and evaluation of disclosure professionals**

- (a) The Exchange may offer training courses on corporate disclosure, etc. (hereinafter referred to as “disclosure professional certification course”) within twenty (20) hours per year for disclosure staff, etc. of KOSPI-stock-listed corporations for certification of disclosure professionals.
- (b) The disclosure professional certification course shall be offered to the persons who have completed the training courses under [§24(1)1] of the Enforcement Rules and passed the evaluation.
- (c) The criterion for completion of the disclosure professional certification course shall be eighty (80) percent or higher of attendance for the relevant course.
- (d) The criterion for passing the disclosure professional certification course shall be sixty (60) points based on one hundred (100) points.
- (e) Those who have completed the disclosure professional certification course pursuant to item (c) can take the evaluation for one (1) year from the date of course completion.
- (f) The Exchange may decide when to offer the disclosure professional certification course, taking into account the needs for the course, etc.
- (g) The Exchange may entrust the training programs for certification of disclosure professionals to the Korea Listed Companies Association.

#### **3. Follow-up training**



(a) The Exchange shall provide follow-up training for disclosure professionals within eight (8) hours.

(b) Disclosure professionals shall complete the follow-up training under item (a) once in the year which includes the date three (3) years has elapsed based on the year in which they have been certified as disclosure professionals, and additionally complete the follow-up training once every three (3) years.

(c) In the follow-up training under item (a), a separate evaluation may be omitted.

(d) Items (f) and (g) of subparagraph 2 shall apply *mutatis mutandis* with respect to the provision of follow-up training under item (a).

#### **4. Management of disclosure professionals**

(a) The Exchange may award commendations and pay monetary rewards to those who have completed the disclosure professional certification course with excellent performance.

(b) The Exchange shall prepare and maintain a list of disclosure professional certifications.

(c) Where a person who was certified as a disclosure professional fails to complete the follow-up training under subparagraph 3, the Exchange may revoke the certification of disclosure professional of the person. In such cases, the person whose disclosure professional certification has been revoked can re-acquire the certification of disclosure professional only when he/she completes the disclosure professional certification course under subparagraph 2 again and passes the evaluation.

#### **5. Preferential treatment for disclosure professionals**

(a) The Exchange may grant additional points in applying the evaluation standards under [§6] of the “Selection Standards of Outstanding Disclosure Corporations, etc. of KOSPI Market” when a person who has been certified as a disclosure professional performs the duties as disclosure staff, etc. of a KOSPI-stock-listed corporation.

(b) The Exchange may not apply item (a) in cases where the disclosure professional certification is revoked pursuant to subparagraph 4(c).

#### **6. Others**

Other necessary detailed matters shall be determined by the head of the department in charge of disclosure of the KOSPI Market Division.

**[Annex: Form No. 1] Improvement Plan for Prevention of Unfaithful Disclosure**

(Amended on April 19, 2012)

**Improvement Plan for Prevention of Unfaithful Disclosure**

To Korea Exchange, Inc.

Pursuant to [§39(2)] of the KOSPI Market Disclosure Regulation and [§15(1)] of the Enforcement Rules of the same Regulation, I, the undersigned, hereby submit the improvement plan for prevention of unfaithful disclosure as outlined below:

1. The reasons for noncompliance with disclosure obligations and the process thereof
2. Detailed improvement plan, including the reform of organizational structure to prevent recurrence of unfaithful disclosure, and the timetable of the plan
  - a. Details of the plan
  - b. Timetable
3. Others

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative director (CEO):

**[Annex: Form No. 2] Written Report on Implementation of Improvement Plan for Prevention of Unfaithful Disclosure**

[August 28, 2015]

**Written Report on Implementation of Improvement Plan for Prevention of Unfaithful Disclosure**

To Korea Exchange, Inc.

Pursuant to [§39(2)] of the KOSPI Market Disclosure Regulation and [§15(2)] of the Enforcement Rules the same Regulation, I, the undersigned, hereby submit a report on implementation of the improvement plan for prevention of unfaithful disclosure as outlined below:

1. The causes for noncompliance with disclosure obligations and the process thereof
2. Details of implementation of the detailed plan for improvement, which are stated in the improvement plan
3. Other necessary matters

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative director (CEO):

**[Annex: Form No. 3] Delegation of Disclosure Authority**

(Amended on April 19, 2012)

**Delegation of Disclosure Authority**

To Korea Exchange, Inc.

xxxx (name of the company) hereby delegates the authority to accomplish the tasks relating to the disclosure operation on behalf of this Corporation to ooo (name of disclosure officer), the disclosure officer of this Company, pursuant to of the KOSPI Market Disclosure Regulation of the Korea Exchange. Furthermore, the Company shall make sure that ooo attends the meetings, including the Board meeting, where the material management decisions are made, thus facilitating faithful compliance of disclosure obligations, and in the event of failing to faithfully comply with the disclosure obligation, the company shall take the responsibility.

Appointee (Disclosure Officer):

Name & signature/seal:

Resident Registration No.:

Positional Title:

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative (CEO):

**[Annex: Form No. 4] Written Notification of Appointment of Disclosure Agent**

(Amended on April 19, 2012)

**Written Notification of Appointment of Disclosure Agent**

To Korea Exchange, Inc.

In order to faithfully comply with the disclosure obligations stipulated in the KOSPI Market Disclosure Regulation of the Korea Exchange, xxxx (name of the company) has appointed xxx (name of the agent) as the disclosure agent of this Company and xxx (name of the agent) has agreed to carry out the duties of disclosure agent on behalf of this Company for the period noted below. Therefore, we hereby notify the Korea Exchange that xxx (name of the agent) has the legal authority to act as the disclosure agent for the period noted below.

Additionally, in order to establish a close contact mechanism with the Korea Exchange, in the event that the address or location of the appointed disclosure agent in Korea is changed, we will nominate a service agent and notify the Korea Exchange such fact without delay, and we hereby confirm that we will take all responsibilities for any losses incurring from the breach of this obligation.

1. Disclosure agent: \_\_\_\_\_ (signature or seal)
2. Term of appointment: from \_\_\_\_\_ to \_\_\_\_\_

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative director (CEO):

**[Annex: Form No. 5] Written Notice on Imposition of the Fine for Noncompliance with Disclosure Obligations**

(Amended on April 19, 2012)

**Written Notice on Imposition of the Fine for Noncompliance with Disclosure Obligations**

1. Fine levied against: XXX (Name of Representative (Chief Executive Officer) of the company fined)

2. Amount:

3. Payment due date:

4. Payment method:

Method: Wire transfer to the account of the Korea Exchange

Account No.: 000-00-000000 with xxxx Bank

Account holder: The Korea Exchange

Others: Cash or cashier's check that can be cashed on the same day

5. Legal base and reasons for fine

- Article 35-2 of the KOSPI Market Disclosure Regulation and Article 13-3 of the Enforcement Rules of the KOSPI Market Disclosure Regulation

6. Others

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative (CEO):

## **[Annex: Form No. 6] Request for Withholding of Disclosure**

(Amended on April 19, 2012)

### **Request for Withholding of Disclosure**

To Korea Exchange, Inc.

Pursuant to the KOSPI Market Disclosure Regulation and the Enforcement Rules thereof, the undersigned xxxx (*name of the company requesting to withhold the publication of the corporate disclosure*) wishes to request to withhold the release of the disclosure specified below:

1. Title of Disclosure to be withheld:
2. Details of disclosure to be withheld<sup>1</sup>:
3. Reasons for requesting to withhold<sup>2</sup>:
4. Withholding period<sup>3</sup>:

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative (CEO):

Notes:

1. “Details of disclosure to be withheld” refer to the specifics in the disclosure report, which the company wishes to withhold, e.g., “key contract conditions” in the disclosure titled “the single sales/supply agreement”.
2. “Reasons for requesting to withhold” refer to the reasons relating to the confidentiality of business operation and the estimated damage that might be caused if such confidential information is made public.
3. “Withholding period” should be specified by stating “until the year, month and date”.

**[Annex: Form No. 7] Written Request for Linked Disclosure of Material Business Matters of Subsidiary by Holding Company (New / Change)**

(Amended on February 26, 2013)

**Written Request for Linked Disclosure of Material Business Matters of Subsidiary by Holding Company (New / Change)**

To Chairperson & CEO of Korea Exchange, Inc.

Pursuant to [§8] of the KOSPI Market Disclosure Regulation and [§4-5] of the Enforcement Rules of the same Regulation, with respect to the disclosure of material business matters of a subsidiary which is a listed corporation, xxx Co. (“this Company”) hereby submits a written request for a linked disclosure in which the reporting of the matters noted in each Subparagraph of [§7(1)] of the KOSPI Market Disclosure Regulation made by the subsidiary is deemed as the disclosure submitted by this Company, the holding company, through the Exchange’s electronic disclosure system, although this Company does not submit disclosure separately.

1. Reasons for making this application concerning the disclosure matters of listed subsidiary:

2. Date when the linked disclosure to be applied:

3. Changes in the listed subsidiary

|          |                                                                                         | Listed | Unlisted |
|----------|-----------------------------------------------------------------------------------------|--------|----------|
| (New)    | Name of subsidiary                                                                      |        |          |
| (Change) | Name of the subsidiary of which disclosure is to be applied for linked disclosure       |        |          |
|          | Name of the subsidiary of which disclosure is to be excluded from the linked disclosure |        |          |

\* In the case of a listed subsidiary of which disclosure is applied for the linked disclosure, the ratio of the value of subsidiary’ stocks held by the holding company to the total assets of the holding company shall also be stated.

4. Documentary evidence: Attached

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative director (CEO):



**[Annex: Form No. 8] Written Statement on Filing of Report on Corporate Governance**

[January 2, 2019] (Amended on November 21, 2023)

**Written Statement on Filing of Report on Corporate Governance**

To Korea Exchange, Inc.

We hereby file a report on corporate governance pursuant to Article 24-2 of the KOSPI Market Disclosure Regulation and Article 7-2 of the Enforcement Rules of the same Regulation and confirm the fact that there are no false statements or missing material matters in the descriptions.

Date: mm/dd/yyyy

Name of company:

Name & signature/seal of representative director (CEO):